STANDARD OPERATING PROCEDURE			A-8100	
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 04/01/07	DATE REVISED **02/08/23**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE ADMINISTRATION	RESOURCES N.R.S. 33-117 AND 81-1176 CALEA 74.1.1			
SUBJECT CIVIL PROCESS OPERATIONS	CROSS REFERENCE			

I. Purpose:

The purpose of this policy is to establish the procedures for serving documents (writs, subpoenas, etc.) issued by the Courts of Sarpy County and other jurisdictions (referred to as Civil Process).

II. Policy:

The Sheriff's Office is responsible for the serving and returning a variety of documents issued by Courts including but not limited to summons, subpoenas, orders of attachment, orders of replevin, other orders of the court, notices of motion, other notices, other writs or documents, or any combination thereof, including any accompanying or attached documents. The Sheriff's Office also serves other documents for the public that require official return notice of service. The Sheriff's Office Civil Process Unit shall be responsible for the collection of fees, service of documents, and return notice of service.

III. Procedures:

A. Receipt of Documents (Papers): Papers are received from a variety of sources including Sarpy Courts: County and District, U.S. Postal Service, intra-office courthouse mail, and personal delivery by attorneys or the public. Upon the receipt of papers, the following procedures shall be adhered to for the majority of the writs.

1. When the papers are brought in by the public, a Civil Process Unit-Staff Support employee (Including the Account Clerk-Civil Process and Staff Support-Civil Process positions) shall determine if the paper is eligible for service by the Sarpy County Sheriff's Office (e.g. address is within Sarpy County). If there is any question whether the paper is eligible for service, the employee may contact a Civil Process Unit deputy or Administrative

Commander. If the paper is eligible for service, the following procedures shall be adhered to:

a) If the papers are pro se (i.e., no attorney is involved), an advance fee shall be collected either by check or cash. Current fees shall be posted at the Civil Process Unit and are based on the fees listed for such service in the Nebraska Revised Statute 33-117 and the average cost of mileage based on Nebraska Revised Statute 81-1176. A receipt shall be given to the individual and the paper is then date and time stamped.

b) If the papers are brought in by an attorney there is no advance fee collected unless the attorney is on the Sheriff's Office Suspended List and then past bills and an advance fee shall be collected before the paper(s) will be served. The paper is then date and time stamped.

2. Papers are generally received with two copies of the summons and a copy of the petition or complaint. The original summons is placed in the original file and held until service is completed. A return slip is printed out after entering the paper and this is attached to the papers to be served. The papers are then given to a Civil Process Unit deputy or process server for service.

3. The following information shall then be entered into the computer records system:

a) Date and time received.
b) Type of legal process, civil or criminal.
c) Nature of document.
d) Source of document.
e) Name of plaintiff/complainant or name of defendant/respondent.
f) Personnel assigned for service.
g) Date of assignment.
h) Court docket number.
i) Date service due.

4. A return slip is printed out after entering the paper and this is attached to the papers to be served. The papers are then given to a Civil Process Unit deputy or process server for service.

5. The deputy or process server attempting or completing service shall write his or her mileage and any pertinent information on the return slip and after service, or attempted service, the deputy shall complete the return and place it in the Returns file.

B. **Returns:** Returns shall be done daily to ensure the papers are quickly and efficiently returned to the respective attorneys and courts.

1. The computer is updated with the date and time served and the deputy's mileage. A Return of Service is then printed and attached with the original paperwork from the original file. The original papers are then sent back to the attorney or courts from which they originated.

2. If Advance Fees were collected, an Advance Fees Refund Statement is printed out and a check is made out. The check and statement are sent back to the person or court from whom the money was received.

C. **Order of Sale:** Orders of Sale are received from District Court.

1. No date shall be set for an Order of Sale until the Order is received and an advance fee deposit is received from the attorney.

2. A publication notice is prepared to run four (4) consecutive weeks before the day of the sale, which shall be on a Monday at 1000 hours. The notice shall run in the newspaper of record. The employee completing the publication notice shall ensure the date does not fall on a holiday. Deadline for starting publication is no later than 0900 hours on the Monday preceding the first publication run on Wednesday. A notice of the sale shall be forwarded to the attorney by the newspaper of record on the Friday following the first publication run. Also, a copy of the publication notice shall be mailed directly to the attorney from the Sheriff's Office. After four (4) consecutive publication runs, an Affidavit of Publication shall be sent to the Sheriff's Office by the newspaper. The cost of the publication will be shown on the Affidavit.

3. A deputy, generally a member of the Civil Process Unit, shall hold the auction on the day of the sale at the time specified. Property shall be sold to the highest bidder. The winning bidder must deposit 15% down by the end of the business day-cashier check. The balance due in seven (7) days by cashier’s check. If the highest bidder is the plaintiff, they are exempt from depositing the amount of the bid with the Sheriff.

4. A Return to Order of Sale shall be made out to the appropriate court showing judgment amounts, interest accumulated, fees incurred, amount of bid, highest bidder, etc. A commission shall be deducted from the amount of the final bid when the highest bidder is not the plaintiff. If the plaintiff is the highest bidder, the attorney shall be billed for the commission. The commission shall be turned over to the county and the remainder of the proceeds of the sale shall be turned over to the District Court with the Return to Order of Sale, Affidavit of Publication and Order of Sale.

5. Sheriff fees and publication fees shall be deducted from the advance fee deposit, with any remaining balance to be refunded to the attorney. A check shall be issued to the newspaper of record for the cost of the publication.

6. When the successful bidder is the plaintiff, a deed shall be issued upon receipt of an Order Confirming Sale and indication that the commission has been paid in full. When the successful bidder is other than the plaintiff's attorney, an Order Confirming Sale shall be issued. A copy of all the paperwork accumulated during the sale process shall be maintained by the Civil Process Unit.

D. **Execution Sales:** Similar to an Order of Sale, except that at an Execution Sale personal property may be sold as well as real estate property. The advance fee deposit for personal property to be sold shall be obtained from the attorney prior to setting the date of sale. Procedures for Execution Sales are the same as Orders of Sale.

E. **Writ of Seizure:** A Writ of Seizure is issued from the Nebraska Department of Revenue for payment due for controlled substances taxes and penalty by delinquent taxpayers. It is the Sheriff's Office responsibility to seize property, run the legal notice and hold the sale.

1. A legal notice is to run for three weeks. Service must be completed on each individual involved, either by personal service or certified mail. Also, a copy of the legal notice is mailed by certified mail to notify the individual of the sale date and items being sold.

2. The money collected from such sale is then deposited in the Civil Process checking account and fees are deducted by the Sheriff and the remaining balance is then turned back over to the Department of Revenue.

F. **Billing:** Each paper that has not been paid for in advance shall be billed to the attorney after the end of the month it was served.

1. The computer shall sort each attorney and print a bill showing all fees on papers served for that attorney during that month.

2. Bills are printed out in duplicate: a copy is sent to the attorney and is to be returned with his or her remittance; one copy shall be retained in the Billing files until remittance is received.

3. As payments are received, the retained copy of the bill is removed from the Billing files and disposed of, and the computer is updated with the payment information.

4. Past due billing is also done at the end of every month and a "Past Due" notice is mailed to the attorney.

G. **Monthly Duties:** The Civil Process Unit-Staff Support is responsible for completing the following monthly:

1. Monthly billing to attorneys.

2. Completing a report of total fees to be paid to the County for that particular month. A check payable to the Sarpy County Treasurer for the amount of total fees shall be forwarded to the Treasurer. The County Treasurer will issue a receipt. A copy of the receipt and the fee statement shall be retained by the Civil Process Unit for auditing purposes. The original receipt and a copy of the fee report shall be forwarded to the County Clerk.

3. A report is compiled each month with a breakdown of activity in civil process for that month. Copies are made for the Sheriff, Chief Deputy, and the administrative commanders. The original report is kept in Civil Process Unit files.

4. Run the mileage reports and issue checks to deputies and process servers for that month. Also included is a separate check for Protection Order mileage which is paid by the District Court.

H. **Protection Orders:** Protection orders are received from Sarpy County District Court as well as from other courts in Nebraska and other states either by mail, fax or brought into the LEC by attorneys or whomever is filing the order. Protection Orders shall be served by deputies.

1. When a protection order is received it is date and time stamped. There is no charge for the service of a protection order. Any mileage is added to the return and submitted to Sarpy County at the end of the month for payment to the deputies.

2. There are three (3) types of protection orders: Domestic Abuse Orders 42.924, Harassment Orders 28.311.09, and Sexual Assault Protection Orders 28.311.11. Domestic Abuse Orders may contain exclusion language barring an individual from a residence.

3. Each protection order consists of a praecipe, the order, the petition with affidavit and in the case of Harassment Orders, a Request for hearing. The praecipe shall not be served, but all other attachments shall be provided to the individual served.

4. Protection orders issued to juveniles shall be served by deputies. Every attempt shall be made to serve the juvenile away from the school setting

(i.e., home, work). The parent(s) or guardian shall be notified and be present at the time of the service.

I. **Mileage Fees:** Mileage fees shall be determined as follows:

1. As the civil process deputy or server leaves the Sarpy County Sheriff's Office (SCSO) he or she shall document the current mileage.

2. Upon return to the SCSO the deputy shall document the miles traveled. The total mileage for the trip shall be calculated at the allowable rate plus three cents ($.03) as determined by Nebraska State Statue 81-1176.

3. This amount shall then be prorated accordingly and charged to each return or attempt. The proration shall consist of dividing the total mileage for the trip by the number of returns or attempts made during that trip.

4. Any time the deputy returns to the SCSO, for any reason, a new trip shall be started and total mileage for that trip shall be divided by the number of returns or attempts made during that trip.